



STANDING ORDER NO. TECH. & PI/02/2025

MENACE OF NOISE POLLUTION

1. The Hon'ble Supreme Court of India and Hon'ble NGT has taken a serious view of noise pollution in Delhi caused by Traffic violations, construction equipment, industrial activities, aircraft noise, generator sets, Public Address system [Loudspeaker, Disk Jockey (DJ), Music system, crackers etc.
2. A large number of circulars / instructions have been issued from time to time for effective action against the menace of loudspeakers, firecrackers and generator sets causing disturbance to peace and tranquility of citizens, in the name of celebrations like marriages, religious processions and rallies/demonstrations etc.
3. The Noise Pollution (Regulation and Control) Rules, 2000 is attached as **Annexure –‘A’**. As per the schedule of this rules [See rule 3(1) and 4(1)] :-

a) Ambient Air Quality, Standards in respect of Noise is categorized as under:-

Category of Area/Zone	Limits in dB(A) Leq.*	
	Day Time (6 AM to 10 PM)	Night Time (10 PM to 6 AM)
Industrial Area	75	70
Commercial Area	65	55
Residential Area	55	45
Silence Zone	50	40

Note: *Silence Zone [Reference Section 3(5) of Noise Pollution (Regulation and Control) Rules, 2000] is defined as areas comprising not less than 100 meters around hospitals, educational institutes, courts, religious places or any other area, which is declared as such by the competent authority. Use of Vehicular horns, loud speakers and bursting of crackers shall be banned in these zones.*

*Leq --Equivalent Continuous Sound Level

b) Violations: Sections 5 & 5A of Noise Pollution (Regulation and Control) Rules, 2000 stipulated the conditions for usages of loud speakers/public address system/ horns/ bursting of crackers and other sound producing instruments which includes:

1. *Taking necessary permissions for usage from designated authority,*
2. *Regulating use during night hours in silence/residential zones,*
3. *Regulating usage during special occasions.*

Non-Compliance of the stipulated conditions shall be considered as a violation.

c) Designated Authority: "Authority" [defined in Section 2(c) of Noise Pollution (Regulation and Control) Rules, 2000] means and includes any authority or officer authorized by the Central Government or as the case may be, the State Government in accordance with the laws in force and includes a District Magistrate, Police Commissioner or any other officer not below the rank of the Deputy Superintendent of Police, designated for the maintenance of the ambient air quality standards in respect of noise under any law for the time being in force;

d) Filing of Complaint: A person may, if the noise level exceeds the ambient noise standards by 10 dB (A) [defined in Section 5(4) of Noise Pollution (Regulation and Control) Rules, 2000] or more given in the corresponding columns against any area / zone or, if there is a violation of any provision of these rules regarding restrictions imposed during night time, make a complaint to the authority.

e) Action against defaulters: The authority shall act on the complaint and take action against the violator in accordance with the provisions of these rules and any other law in force.

4. The Environment (Protection) Act, 1986 (29 of 1986) covers various aspects for the protection and improvement of environment and checking of noise pollution. **To this effect Noise Level Meters were purchased during the year 2002 and distributed to all ACsP. They were also imparted training in operating the Noise Level Meters. In continuation to above, in March, 2020, 244 Nos. of sound level meters were also procured and distributed to all ACsP/SDPOs and SHOs.** The ACsP of Sub-Divisions have been empowered to initiate action *suo moto* or on a complaint/information on noise pollution causing annoyance, disturbance, discomfort etc. Besides, the orders of Hon'ble L.G. Delhi dated 05.12.2001 regarding banning the use of generator sets of capacity of 5 KVA and above in the residential areas between 10 PM to 6 AM should also be implemented meticulously. **Finally, no one should use loudspeaker etc. without the prior written permission of the Distt. DCP.**

5. The Hon'ble Supreme Court of India in Writ Petition (Civil) No. 72/1998 (PIL) has issued certain directions with regard to noise

pollution by firecrackers, loudspeakers, vehicle noise etc. The synopsis of directions contained in judgment dated 18.07.2005 are as under:-

I. Firecrackers:

1. There shall be a complete ban on bursting sound emitting firecrackers between 10 pm and 6 am. It is not necessary to impose restrictions on the time of bursting of colour/light emitting firecrackers.
2. **Every manufacturer shall on the box of each firecracker mentions details of its chemical contents and that it satisfies the requirement as laid down by Department of Environment (DOE).** In case of failure on the part of the manufacturer to mention the details or in cases where the contents of the box do not match the chemical formulae as stated on the box, the manufacturer may be held liable.

In pursuance to the above conditions, Hon'ble Apex Court has passed further directions on October 23, 2018 in Writ Petition (Civil) No. 728 of 2015, the relevant suggestions II & III are reproduced below:

Suggestions No. II.

Use of Reduced Emission firecrackers (Improved crackers) - (a) Avoidance of use of ash as desiccant or filler materials in crackers for reduction in Particulate Matter (PM) by 15-20%. These can be implemented subject to approval by Petroleum and Explosive Safety Organization (PESO), and (b) usage of charcoal meeting specifications of explosives and pyrotechnics as prescribed by PESO.

Suggestion No. III.

Use of Reduced Emission firecrackers [Green crackers: Safe Water and Air Sprinklers (SWAS)] - Low emission sound and light emitting functional crackers with PM reduction by 30-35% and significant reduction in Nitrogen Oxides (Nox) and Sulphur Dioxide (SO₂) due to in-situ water generation as dust suppressant and low cost due to usage of low-cost oxidants. These can be implemented subject to approval by PESO.

Further, directions passed for compliance are, thus,

- 1) The crackers with reduced emission (improved crackers) and green crackers, as mentioned in Suggestion Nos. II and III above only would be permitted to be manufactured and sold.
- 2) As a consequence, production and sale of crackers other than those mentioned in Suggestion Nos. II and III is hereby banned.
- 3) The manufacture, sale and use of joined firecrackers (series crackers or laris) is hereby banned as the same causes huge air, noise and solid waste problems.
- 4) The sale shall only be through licensed traders and it shall be ensured that these licensed traders are selling those firecrackers which are permitted by this order.
- 5) No e-commerce websites, including Flipkart, Amazon etc., shall accept any online orders and effect online sales. Any such e-commerce

companies found selling crackers online will be hauled up for contempt of Court and the Court may also pass, in that eventuality, orders of monetary penalties as well.

- 6) Barium salts in the fireworks is also hereby banned.
- 7) Even those crackers which have already been produced and they do not fulfill the conditions mentioned in Suggestion Nos. II and III above will not be allowed to be sold in Delhi and NCR.
- 8) Extensive public awareness campaigns shall be taken up by the Central Government/State Governments/Schools/Colleges informing the public about the harmful effects of firecrackers.
- 9) On Diwali days or on any other festivals like Gurpurab etc., when such fireworks generally take place, it would strictly be from 8:00 p.m. till 10:00 p.m. only. On Christmas eve and New Year eve, when such fireworks start around midnight, i.e. 12:00 a.m., it would be from 11:55 p.m. till 12:30 a.m. only.
- 10) The Union of India, Government of NCT of Delhi and the State Governments of the NCR would permit community fire cracking only (for Diwali and other festivals etc. as mentioned above), wherever it can be done. For this purpose, particular area/fields would be pre-identified and predesignated by the concerned authorities. The areas designated for the purpose of Diwali shall be valid for community fire cracking on other occasions/festivals as well, as mentioned above. Even for marriages and other occasions, sale of improved crackers and green crackers is only permitted.
- 11) All the official respondents, and particularly the Police, shall ensure that fireworks take place only during the designated time and at designated places, as mentioned above. They shall also ensure that there is no sale of banned firecrackers. In case any violation is found, the Station House Officer (SHO) of the concerned Police Station of the area shall be held personally liable for such violation and this would amount to committing contempt of the Court, for which such SHO(s) would be proceeded against.

II. Loudspeakers: (Reference Section 5 of Noise Pollution (Regulation and Control) Rules, 2000)

1. The noise level at the boundary of the public place, where loudspeaker or a public address system or any other noise source is being used shall not exceed 10 dB (A).
2. No one shall beat a drum or tom-tom or blow a trumpet or beat or sound any instrument or use any sound amplifier at night (between 10.00 pm and 6.00 am) except in public emergencies.
3. The peripheral noise level of privately owned sound shall not exceed by more than 5 dB(A) than the ambient air quality standard specified for the area in which it is used, at the boundary of the private place.

4. According to Regulation No. 3 of the 'Union Territory of Delhi Loudspeakers (Licensing and Controlling) Regulations, 1980, no person shall use, or permit loudspeakers in any public place or within a distance of 200 meters from any public place or in any place of public entertainment except under and in accordance with the conditions of licence granted by the Commissioner of Police, Delhi or by any officer authorized by him on his behalf. **No permission for playing of loudspeakers between 10.00 PM to 6.00 AM should be issued by the districts under any circumstances.**

III. Vehicular Noise:

No horn should be allowed to be used at night (between 10 pm and 6 am) in residential area except in exceptional circumstances. Further action is to be taken against vehicles causing noise pollution and using multitoned horns, power/pressure/ musical horns as well as honking in silence zones. (21/177RRR and 96(1)/177DMVR)

The Noise Limits for vehicles were notified by Environment Protection Amendment Rules, 2005 vide GSR No. 272 (E), dated 05 May 2005 under Environment Protection Act, 1986. The test method for monitoring noise for vehicle to be followed as per IS:3028-1998.

Standard for two wheelers & three wheelers are prescribed as 80dB (A), whereas for passenger car and other vehicles, standards varies between 82 to 91 dB(A).

Action on violation with respect to vehicular noise are defined as per legal provisions Section 190(2) and Section 204(4) of the Motor Vehicle (Amendment) Act 2019.

IV. Generator Sets:

The use of generator sets are causing air/noise pollution. The Hon'ble Supreme Court of India has taken a serious view of noise pollution in Delhi due to the use of generator sets. The Hon'ble L.G. Delhi's order dated 05.12.2001 regarding banning of operation of generator sets of capacity of 5 KVA & above in the residential area between 10.00 P.M. to 6.00 A.M should also be strictly implemented.

Vide Notification No. G.S.R. 535(E) dated August 25, 2013/ G.S.R 215 (E), dated 15th March, 2011 under the Environment (Protection) Act, 1986, specifies Noise Limit for Generator sets run with Petrol or Kerosene (86dBA) and Diesel (75dBA) respectively.

V. Awareness:

1. There is a need for creating general awareness about the hazardous effects of noise pollution. Suitable chapters may be added in the text-books which teach civic sense to the children and youth at the initial/early level of education. Special talks and lectures be organized in the schools to highlight the menace of noise pollution and the role of the children and younger generation in preventing it. Police and civil

- administration should be trained to understand the various methods to curb the problem and also the laws on the subject.
2. The State must play an active role in this process. Resident Welfare Associations, Service Clubs and Societies engaged in preventing noise pollution as a part of their projects need to be encouraged and actively involved by the local administration.
 3. Special public awareness campaigns in anticipation of festivals, events and ceremonial occasions where firecrackers are likely to be used, need to be carried out.

The above said guidelines are issued in the exercise of powers conferred on this Court under Articles 141 and 142 of the Constitution of India. These would remain in force until modified by this Court or superseded by an appropriate legislation.

6. DIRECTIONS OF HON'BLE NGT (Annexure-'B')

Further, in pursuance & compliance to the orders of the Hon'ble Apex Court, Hon'ble National Green tribunal has laid down certain directions for effective implementation & enforcement of Noise Rules in OA No 519/2016. On dt. 27-09-2018, it was directed that:

- i. The Chief Secretary, Delhi, Commissioner of Police, Delhi and Delhi Pollution Control Committee are made responsible for the enforcement of directions of the Hon'ble Supreme Court referred to above as well as to comply with the Statutory Rules and Regulations and instructions on the subject. They have to take effective steps in the matter;
- ii. The Commissioner of Police was directed to nominate a DCP exclusively for dealing with the issue of noise pollution. Other police authorities of Delhi must co-operate and report to the DCP (Noise Pollution) with regard to the issue of noise pollution;

Presently, DCP/Ops. is looking after the charge of Nodal Officer of Noise Pollution, Delhi Police.

- iii. Chief Secretary of Delhi was directed to nominate one SDM exclusively for dealing with the issue of noise pollution in same manner as (ii) above;

Subsequently, on behalf of GNCT, Delhi, DC Headquarters (Revenue) is looking after the charge of Nodal Officer of Noise Pollution.

- iv. The above DCP and the SDM were directed to conduct a joint meeting to review the situation at least once in a week;
- v. They were directed to have their exclusive website for receiving and disseminating information to the public. It was further ordered that a dedicated helpline 24 x 7 may be made operative which may be jointly monitored by the DCP and the SDM.

In pursuance to the above orders the exclusive website: ngms.delhi.gov.in was commissioned on 29.07.2019 and dedicated Helpline - 155271 was made operational on 06.04.2019.

- vi. The Member Secretary of Delhi Legal Services Authority was directed to nominate two senior citizens and suitable number of paralegal volunteers representing the concerned areas who may attend at least one meeting with the DCP and the SDM in a fortnight.

Regular fortnightly meetings are being conducted with the representatives nominated by DSLSA.

- vii. A complete public redressal mechanism system should be devised for receiving complaints by SMS, telephones or e-mails.

In pursuance to the above orders, following platforms have been instituted to receive complaints:

- a) **ERSS-112**– A separate head has been created at ERSS for noise pollution calls.
- b) **Helpline No-155271** –a dedicated toll-free helpline for noise pollution calls is functioning 24x7 at ERSS-Haiderpur from 06.04.2019.
- c) **Web Portal** – <https://ngms.delhi.gov.in> developed by NIC is functioning for receiving grievances related to noise pollution. In this system, all grievances are being transferred to the mobile phones of concerned SHOs through SMS. They have to dispose off the complaint within 30 minutes, otherwise it is escalated to the concerned SDPOs and SDMs for disposal. They have got next 30 minutes for disposal; afterwards, it is transferred to a data bank managed by NIC.
- d) **Green Delhi App** – On this GPS based app, all grievances related to noise pollution are transferred to Delhi Police for disposal. This App is managed by GNCT, Delhi and about 28 departments/agencies are registered on this app, for complaint redressal. On this app, DCP/Ops. is Central Nodal officer & ACP-Ops. of districts are Distt. Nodal officers. All grievances on this app are being transferred to Central Nodal Officer, who forwards them to the concerned ACsP/Operations i.e. District Nodal Officers, who subsequently transfers them to concerned SHOs for disposal. The SHOs have to forward them to the concerned IOs, who have to visit the spot, click the photo and dispose the complaint by uploading that photo on app itself. All transfers on this app are being done through app itself and disposal time is 48 hours. After the expiry of the disposal time, the status of the grievance is changed from pending to overdue and escalated to the notice of senior officers.
- e) **Sameer App** – On this app, all grievances related to Traffic and air & noise pollution created by generator sets are transferred to Delhi Police for disposal. This app is managed by CPCB and DCP/Ops. is

central Nodal officer and all Addl. DCP-I of the districts are Districts Nodal officers. The disposal time on this app is 24 hours and transfer of grievances up to level of District Nodal Officers is being done through app itself.

- viii. The Joint Committee of DCP and SDM are being directed to co-ordinate with the statutory authorities so as to ensure that any equipment used is seized, any license of the person using such equipment may be cancelled, prosecution initiated, fines recovered.
- ix. The statutory authorities may suitably enhance the amount of fine so as to act as deterrent.
- x. The amount of fine collected may be credited to a separate fund and utilized in the process of creating awareness, including by way of awareness programs in educational institutions, by instituting prizes and awards for the participants. This mechanism will be in addition to and not in substitution of the existing statutory mechanism under the rules.
- xi. As per order dt.14.03.2019, the Joint Committee is directed to undertake awareness programs in coordination with resident welfare association and educational departments and other volunteers.

In pursuance to the above orders, print media, FM channels, social media, educational institutions run by local bodies as well as GNCT, Delhi, Department of Environment and PRO, Delhi Police are being involved in fortnightly meetings for spreading awareness. Periodic instructions are also being given to SHOs to conduct awareness programs in coordination with RWAs.

- xii. In its order dt.14.03.2019, Hon'ble NGT has directed the Joint Committee "If any orders are required to be passed, such orders may be passed, which should be ensured by the Joint Committee setup for this purpose. Joint Committee itself can notify such orders in execution to the orders of this Tribunal."

In compliance to the above orders, the Joint Committee calls the representatives of the stake holder departments like GNCT, DPCC, CPCB, Local & Civic bodies, PWD, NHAI, NIC, acoustic experts and such others experts which it deems proper and appropriate for technical assistance and compliance of the order of Hon'ble NGT.

7. GENERAL INSTRUCTIONS

- i. The State shall make provision for seizure and confiscation of loud-speakers, amplifiers and such other equipment as are found to be creating noise beyond the permissible limits.

In pursuance to above, a compensation regime has also been notified on 25.06.2021 by DPCC in compliance to the directions of Hon'ble NGT, in which compensation scale laid down by CPCB is enforced throughout NCT Delhi. In this scale, different fine amounts

are specified for different offences and Designated Authorities under Noise Pollution Rules, are directly empowered to levy the fine and compensation amount so collected, will be deposited directly in the account of DPCC. The compensation regime has been placed as **(Annexure-‘C’)**.

- ii. Rule 8 of the Noise Pollution (Regulation and Control) Rules, 2000 authorizes the ‘authority’ to take action on a report of an officer incharge of a police station or information received otherwise by him to prevent annoyance, disturbance, discomfort, etc. Such annoyance, disturbance, etc. could arise from vocal or instrumental music, noise coming out of loudspeakers, public address system, or even due to anyone carrying on trade, avocation, operation, etc. or due to burning of crackers, use of firearms, use of generator, continuous use of pressure horns in vehicles, etc. resulting in noise.

In this reference, all SDPOs, ACsP /Airport, Crime & Rly., PCR, Traffic are designated authorities, empowered to take action under Noise Pollution (Regulation and Control) Rules, 2000 **(Annexure-‘D’)**.

- iii. Not with standing anything contained in sub-rule (2) the State Government may, subject to such terms and conditions as are necessary to reduce noise pollution, permit use of loudspeakers or public address systems during night hours (between 10.00 p.m. to 12.00 midnight) on or during any cultural or religious festive occasion for a limited duration not exceeding fifteen days in all during a calendar year.
- iv. All tent/loudspeaker/generator suppliers should be issued clear cut instructions not to supply such equipment to the users without written permission of the local police. Distt. DCsP should ensure that suppliers have supplied the said equipment with written permission of the local police failing which legal action should be taken against them. Distt. DCsP should further write to the local, civic authorities, B.S.E.S Rajdhani Power Ltd., B.S.E.S Yamuna Power Ltd. and N.D.P.L to obtain police clearance before pitching tents/supplying loudspeakers and giving electricity connections etc. for public and private functions. All R.W.As and Market Associations should be sensitized about noise pollution and the legal action which can be taken by the Delhi Police.
- v. In view of the implementation of New Criminal Laws, the detailed action plan of noise pollution has been amended accordingly for initiating actions by IOs & SHOs. **(Annexure-‘E’)**.
- vi. Hon’ble NGT has also declared Noise Pollution as criminal offence and directed to register FIRs U/s 270/292/293 BNS.
- vii. On the directions of Hon’ble NGT dt.15.11.2019, a Gazette notification of sound limiters was notified by GNCT, Delhi, which makes it mandatory that no audio system or public address system shall be let out installed without being fitted with sound limiter in any Govt. or non-Govt. functions. Further no sound system should be sold/

purchased/ supplied/ used by any manufacturer/ dealer/ shopkeeper/ any agency who lets out PA system/ Individual without having sound limiters in it. The Gazette notification has been placed at **(Annexure-‘F’)**.

The action against violation would be taken by Designated Authority under Noise Pollution Rules, 2000.

viii. The above instructions are reiterated for strict compliance.

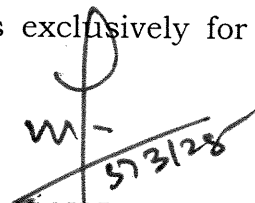
IN CASE OF ANY VIOLATION IS FOUND ATTRACTING THE ABOVE ACTS, ACTION MAY BE TAKEN UNDER THE PROVISIONS OF APPROPRIATE SECTIONS OF THESE ACTS. MOREOVER, ACP/PCR AND SUB-DIVISIONAL POLICE OFFICERS INCLUDING RAILWAYS AND AIRPORT ARE DESIGNATED TO TAKE ACTION UNDER ENVIRONMENT PROTECTION ACT AND RULES, 1986.

8. SUPERSESSSION CLAUSE

This Standing Order supersedes the previous Standing Order No. Tech. & PI/02/2022 issued vide No. 151-300/Record Branch/PHQ dated 05.01.2022 and all the instructions issued on the subject earlier.

9. DISCLAIMER

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.


(SANJAY ARORA)
COMMISSIONER OF POLICE:
DELHI

No. 1801-1950 /Record Branch/PHQ dated Delhi, the 05/03/2025

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ(IV)/PHQ with the direction to upload the Standing Order on Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
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THE NOISE POLLUTION (REGULATION AND CONTROL) RULES, 2000

(The Principal Rules were published in the Gazette of India, vide S.O. 123(E), dated 14.2.2000 and subsequently amended vide S.O. 1046(E), dated 22.11.2000, S.O. 1088(E), dated 11.10.2002, S.O. 1569 (E), dated 19.09.2006 and S.O. 50 (E) dated 11.01.2010 under the Environment (Protection) Act, 1986.)

Whereas the increasing ambient noise levels in public places from various sources, inter-alia, industrial activity, construction activity, fire crackers, sound producing instruments, generator sets, loud speakers, public address systems, music systems, vehicular horns and other mechanical devices have deleterious effects on human health and the psychological well being of the people; it is considered necessary to regulate and control noise producing and generating sources with the objective of maintaining the ambient air quality standards in respect of noise;

Whereas a draft of Noise Pollution (Control and Regulation) Rules, 1999 was published under the notification of the Government of India in the Ministry of Environment and Forests vide number S.O. 528 (E), dated the 28th June, 1999 inviting objections and suggestions from all the persons likely to be affected thereby, before the expiry of the period of sixty days from the date on which the copies of the Gazette containing the said notification are made available to the public;

And whereas copies of the said Gazette were made available to the public on the 1st day of July, 1999;

And whereas the objections and suggestions received from the public in respect of the said draft rules have been duly considered by the Central Government;

Now, therefore, in exercise of the powers conferred by clause (ii) of sub-section (2) of section 3, sub-section (1) and clause (b) of sub-section (2) of section 6 and section 25 of the Environment (Protection) Act, 1986 (29 of 1986) read with rule 5 of the Environment (Protection) Rules, 1986, the Central Government hereby makes the following rules for the regulation and control of noise producing and generating sources, namely:-

The Noise Pollution (Regulation and Control) Rules, 2000

1. Short-title and commencement.-

(1) These rules may be called the 'Noise Pollution (Regulation and Control) Rules, 2000.

(2) They shall come into force on the date of their publication in the Official Gazette.

2. **Definitions-** In these rules, unless the context otherwise requires,-

- (a) "Act" means the Environment (Protection) Act, 1986 (29 of 1986);
- (b) "area / zone" means all areas which fall in either of the four categories given in the Schedule annexed to these rules;
- (c) "authority" means and includes any authority or officer authorized by the Central Government, or as the case may be, the State Government in accordance with the laws in force and includes a District Magistrate, Police Commissioner, or any other officer not below the rank of the Deputy Superintendent of Police designated for the maintenance of the ambient air quality standards in respect of noise under any law for the time being in force;
- (d) "court" means a governmental body consisting of one or more judges who sit to adjudicate disputes and administer justice and includes any court of law presided over by a judge, judges or a magistrate and acting as a tribunal in civil, taxation and criminal cases;
- (e) "educational institution" means a school, seminary, college, university, professional academies, training institutes or other educational establishment, not necessarily a chartered institution and includes not only buildings, but also all grounds necessary for the accomplishment of the full scope of educational instruction, including those things essential to mental, moral and physical development;
- (f) "hospital" means an institution for the reception and care of sick, wounded, infirm or aged persons, and includes government or private hospitals, nursing homes and clinics;
- (g) "person" shall include any company or association or body of individuals, whether incorporated or not;
- (h) "State Government" in relation to a Union territory means the Administrator thereof appointed under article 239 of the Constitution.
- (i) "public place" means any place to which the public have access, whether as of right or not, and includes auditorium, hotels, public waiting rooms, convention centres, public offices, shopping malls, cinema halls, educational institutions, libraries, open grounds and the like which are visited by general public; and
- (j) "night time" means the period between 10.00 p.m. and 6.00 a.m.

3. **Ambient air quality standards in respect of noise for different areas/zones.-**

(1) The ambient air quality standards in respect of noise for different areas / zones shall be such as specified in the Schedule annexed to these rules.

(2) The State Government shall categorize the areas into industrial, commercial, residential or silence areas / zones for the purpose of implementation of noise standards for different areas.

(3) The State Government shall take measures for abatement of noise including noise emanating from vehicular movements, blowing of horns, bursting of sound emitting firecrackers, use of loud speakers or public address system and sound producing instruments and ensure that the existing noise levels do not exceed the ambient air quality standards specified under these rules.

(4) All development authorities, local bodies and other concerned authorities while planning developmental activity or carrying out functions relating to town and country planning shall take into consideration all aspects of noise pollution as a parameter of quality of life to avoid noise menace and to achieve the objective of maintaining the ambient air quality standards in respect of noise.

(5) An area comprising not less than 100 metres around hospitals, educational institutions and courts may be declared as silence area / zone for the purpose of these rules.

4. **Responsibility as to enforcement of noise pollution control measures.-**

(1) The noise levels in any area / zone shall not exceed the ambient air quality standards in respect of noise as specified in the Schedule.

(2) The authority shall be responsible for the enforcement of noise pollution control measures and the due compliance of the ambient air quality standards in respect of noise.

(3) The respective State Pollution Control Boards or Pollution Control Committees in consultation with the Central Pollution Control Board shall collect, compile and publish technical and statistical data relating to noise pollution and measures devised for its effective prevention, control and abatement.

5. Restrictions on the use of loud speakers / public address system and sound producing instruments.-

(1) A loud speaker or a public address system shall not be used except after obtaining written permission from the authority.

(2) A loud speaker or a public address system or any sound producing instrument or a musical instrument or a sound amplifier shall not be used at night time except in closed premises for communication within, like auditoria, conference rooms, community halls, banquet halls or during a public emergency.

(3) Notwithstanding any thing contained in sub-rule (2), the State Government may subject to such terms and conditions as are necessary to reduce noise pollution, permit use of loud speakers or public address system and the like during night hours (between 10.00 p.m. to 12.00 midnight) on or during any cultural or religious festive occasion of a limited duration not exceeding fifteen days in all during a calendar year. The concerned State Government shall generally specify in advance, the number and particulars of the days on which such exemption would be operative.

(4) The noise level at the boundary of the public place, where loudspeaker or public address system or any other noise source is being used shall not exceed 10 dB (A) above the ambient noise standards for the area or 75 dB (A) whichever is lower;

(5) The peripheral noise level of a privately owned sound system or a sound producing instrument shall not, at the boundary of the private place, exceed by more than 5 dB (A) the ambient noise standards specified for the area in which it is used.

5A. Restrictions on the use of horns, sound emitting construction equipments and bursting of fire crackers:-

(1) No horn shall be used in silence zones or during night time in residential areas except during a public emergency.

(2) Sound emitting fire crackers shall not be burst in silence zone or during night time.

(3) Sound emitting construction equipments shall not be used or operated during night time in residential areas and silence zones.

6. Consequences of any violation in silence zone / area.-

Whoever, in any place covered under the silence zone / area commits any of the following offence, he shall be liable for penalty under the provisions of the Act:-

- (i) whoever, plays any music or uses any sound amplifiers,
- (ii) whoever, beats a drum or tom-tom or blows a horn either musical or pressure, or trumpet or beats or sounds any instrument, or
- (iii) whoever, exhibits any mimetic, musical or other performances of a nature to attract crowds.
- (iv) whoever, bursts sound emitting fire crackers; or
- (v) whoever, uses a loud speaker or a public address system.

7. Complaints to be made to the authority.-

(1) A person may, if the noise level exceeds the ambient noise standards by 10 dB (A) or more given in the corresponding columns against any area / zone or, if there is a violation of any provision of these rules regarding restrictions imposed during night time, make a complaint to the authority.

(2) The authority shall act on the complaint and take action against the violator in accordance with the provisions of these rules and any other law in force.

8 Power to prohibit etc. continuance of music sound or noise.-

(1) If the authority is satisfied from the report of an officer incharge of a police station or other information received by him including from the complainant that it is necessary to do so in order to prevent annoyance, disturbance, discomfort or injury or risk of annoyance, disturbance, discomfort or injury to the public or to any person who dwell or occupy property on the vicinity, he may, by a written order issue such directions as he may consider necessary to any person for preventing, prohibiting, controlling or regulating:-

- (a) the incidence or continuance in or upon any premises of-
 - (i) any vocal or instrumental music,
 - (ii) sounds caused by playing, beating, clashing, blowing or use in any manner whatsoever of any instrument including loudspeakers, public address systems, horn, construction

equipment, appliance or apparatus or contrivance which is capable of producing or re-producing sound, or

(iii) sound caused by bursting of sound emitting fire crackers, or,

(b) the carrying on in or upon, any premises of any trade, avocation or operation or process resulting in or attended with noise.

(2) The authority empowered under sub-rule (1) may, either on its own motion, or on the application of any person aggrieved by an order made under sub-rule (1), either rescind, modify or alter any such order:

Provided that before any such application is disposed of, the said authority shall afford to the applicant and to the original complainant, as the case may be, an opportunity of appearing before it either in person or by a person representing him and showing cause against the order and shall, if it rejects any such application either wholly or in part, record its reasons for such rejection.

SCHEDULE

(see rule 3(1) and 4(1))

Ambient Air Quality Standards in respect of Noise

Area Code	Category of Area / Zone	Limits in dB(A) Leq*	
		Day Time	Night Time
(A)	Industrial area	75	70
(B)	Commercial area	65	55
(C)	Residential area	55	45
(D)	Silence Zone	50	40

- Note:-
1. Day time shall mean from 6.00 a.m. to 10.00 p.m.
 2. Night time shall mean from 10.00 p.m. to 6.00 a.m.
 3. Silence zone is an area comprising not less than 100 metres around hospitals, educational institutions, courts, religious places or any other area which is declared as such by the competent authority
 4. Mixed categories of areas may be declared as one of the four above mentioned categories by the competent authority.

* dB(A) Leq denotes the time weighted average of the level of sound in decibels on scale A which is relatable to human hearing.

A "decibel" is a unit in which noise is measured.

"A", in dB(A) Leq, denotes the frequency weighting in the measurement of noise and corresponds to frequency response characteristics of the human ear.

Leq: It is an energy mean of the noise level over a specified period.

Item No.
10

September
27, 2018
dv

and affects the residents living in the area, from the commencement of the function until past midnight. The noise produced also affects the sleep of the residents, more particularly infants and aged people and also deprives children from concentrating in their studies and preparing for tests and examinations.

3. In spite of several representations to the statutory authorities, i.e. respondents no. 1 to 8 (R-1, South Delhi Municipal Corporation, R-2, The Commissioner of Police, R-3, SHO Delhi Police, Rajouri Garden, R-4, Deputy Commissioner of Police (Traffic), R-5, Additional Commissioner (Licensing) Delhi Police, R-6, Sub-Divisional Magistrate (West), R-7, Ministry of Environment, Forests & Climate Change, R-8, Govt. of NCT of Delhi, Department of Environment), no improvement has taken place. The noise pollution created is in violation of Noise Pollution (Regulations and Control) Rules, 2000 under the provision of the Environment (Protection) Act, 1986. The relevant Rule is as follows:

Ambient Air Quality Standards in Respect of Noise

Area Code	Category of Area/Zone	Limits in dB(A) Leq	
		Day time (6.00 am to 10.00 pm)	Night time (10.00 pm to 6.00 am)
A	Industrial Area	75	70
B	Commercial Area	65	55
C	Residential Area	55	45
D	Silence Zone	50	40

4. Reference has been made to the order of this Tribunal dated 18.12.2012, *Supreme Court Group Housing Vs. All India Panchayat Parishad, Application No. 34/2011*

	Item No. 10 September 27, 2018 dv	directing establishment of call centre, drawing up a Standard Operating Procedure (SOP) regarding control of noise pollution in industrial, hospitals and educational/institutional areas, drawing up a Standard Operating Procedure (SOP) to implement ban on use of generator sets of capacity of 5 KVA and above in the residential areas between 10 pm to 6 am. Further directions have been issued to increase fine, ban manufacturing/distribution/sale of pressure horns. 5. Reference has also been made to the judgment of the Hon'ble High Court of Delhi dated 10.05.2001 in Free Legal Aid Cell Vs. Government of NCT of Delhi : AIR 2001 Delhi 455. 6. Lavish night parties continue to be held making free use of stereos, shocking the locality. Terrace parties are also held in same way using high capacity stereo systems, with no regard for the convenience and comfort of the people of the vicinity. Loudspeakers are used at highest pitch disturbing the studies of the students. 7. As observed in <i>Re: Noise Pollution - Implementation of the Laws for restricting use of loud speakers and high volume producing sound systems, (2005) 5 SCC 733</i>, noise has both auditory and non-auditory effects, depending upon the intensity and the duration of the noise level. It affects sleep, hearing, communication, mental and physical health. It may even lead to the madness of people. However, noises, which are melodious, whether natural or man-made, cannot always be considered as factors leading to pollution. Noise can disturb our work, rest, sleep, and communication. It can damage our
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	Item No. 10 September 27, 2018 dv	hearing and evoke other psychological and possibly pathological reactions. However, because of complexity, variability and the interaction of noise with other environmental factors, the adverse health effects of noise do not lend themselves to a straightforward analysis. "Hearing Loss, Deafness, like poverty, stuns and deadens its victims."-says Helen Keller. Hearing loss can be either temporary or permanent. Noise-induced temporary threshold shift (NITTS) is a temporary loss of hearing acuity experienced after a relatively short exposure to excessive noise. Pre-exposure hearing is recovered fairly rapidly after cessation of the noise. Noise induced permanent threshold shift (NIPTS) is an irreversible loss of hearing that is caused by prolonged noise exposure. Both kinds of loss together with presbycusis cause permanent hearing impairment. NIPTS occurs typically at high frequencies, usually with a maximum loss at around 4,000 Hz. It is now accepted that the risk of hearing loss is negligible at noise exposure levels of less than 75 dB(A) Leq (8-hr). Based on national judgments concerning acceptable risk, many countries have adopted industrial noise exposure limits of 85 dB(A) +5 dB(A) in their regulations and recommended practices. [N.B.- Hz. is abbreviation of Hertz which is the unit of frequency, equal to one cycle per second. Hertz (Hz) is the name, by international agreement, for the number of repetitions of similar pressure variations per second of time; this unit of frequency was previously called "cycles per second" (cps or c/s)].
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	Item No. 10 September 27, 2018 dv	8. The 2000 Rules were enacted with the following recital: "Whereas the increasing ambient noise levels in public places from various sources, inter-alia, industrial activity, construction activity, generator sets, loudspeakers, public address systems, music systems, vehicular horns and other mechanical devices, have deleterious effects on human health and the psychological well being of the people; it is considered necessary to regulate and control noise producing and generating sources with the objective of maintaining the ambient air quality standard in respect of noise;" 9. Rules provide for categorizing the areas as industrial, commercial, residential as silence zones. The State Governments are required to take measures for abatement of noise. Areas within 100 meters around hospitals, educational institutions and Courts are silence zone. Loudspeakers or a public address systems cannot be used except after obtaining written permission. They cannot be used from 10:00 pm to 06:00 am. 10. In Re: <i>Noise Pollution</i>, <i>supra</i>, the Hon'ble Supreme Court directed that the noise level at public place should not exceed 10 dB(A) above the ambient noise standards or 75 dB(A) whichever is lower. No one can beat a drum or tom-tom or blow a trumpet or beat or sound any instrument or use any sound amplifier at night (between 10 p.m. and 6 a.m.), except in public emergencies. No horn should be blown at night (between 10 p.m. to 6 a.m.). The States should make provision for seizure and confiscation of loudspeakers, amplifiers and such other equipments as are found to be creating noise beyond the permissible limits. 11. In the order of the Tribunal referred to above,
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	Item No. 10 September 27, 2018 dv	standing orders 73 and 82 issued by the Commissioner of Police and DCP (Traffic) and SDM (East Delhi) were referred to. The Tribunal directed the Jt. Commissioner of Police (Traffic) as well as Jt. Commissioner of Police (Genl.) to report the steps taken for implementation. It was found that the rules are followed more in its breach than compliance. The Divisional Commissioner (East Delhi) was directed to convene a meeting comprising Member Secretary, DPCC, Jt. Commissioner (Police HQ), the Jt. Commissioner (Traffic), Additional Commissioner (Transport/Enforcement), Additional Commissioner, (Licensing) etc. to workout the modalities. 12. Accordingly, a detailed action plan was prepared and placed before the Tribunal which provides for setting up of call centres where complaints could be received 24 x 7, drawing up a detailed Standard Operating Procedure (SOP) for controlling of pollution in industrial, hospitals and educational/institutional areas as well as ban on use of generator sets of capacity of 5 KVA and above in the residential area between 10 pm to 6 am. The Transport Department was to issue notifications to increase fine amount and ban the manufacturing / distribution / sale of pressure horn. The Traffic Police was to have a campaign for challan and prosecutions. The Delhi Police was to seize the amplifiers and other noise pollutants. The Deputy Commissioner was to chalk out strategies in the area. 13. An affidavit has been filed by the Commissioner Health Officer, SDMC stating that inspection was
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	Item No. 10 September 27, 2018 dv	conducted at the terrace and some of the respondents were closed. They were closed and sealed under Sections 345A and 421 of the DMC Act, 1957. The music systems of four restaurants were seized by the Police. 14. The Ministry of Environment, Forests and Climate Change (MoEF&CC) in its affidavits dated 11.10.2002 and 19.10.2006 has referred to the 2000 rules which have been amended. Further amendment is made on 11.01.2010 to the effect that no loudspeaker or a public address system or any sound producing instrument or a musical instrument or a sound amplifier shall be used at night time except in closed premises for communication within, like auditoria, conference rooms, community halls, banquet halls or during a public emergency. The noise pollution shall not exceed 10dB(A) above the ambient noise standards for the area or 75 dB(A) whichever is lower. No horn shall be used in silence zones. Sound emitting fire crackers shall not be burst in silence zone or during night time. Sound emitting construction equipments shall not be used or operated during night time in residential areas and silence zones. 15. The DCP (Traffic), Western Range, has filed a status report stating that 324 challans for improper parking have been issued in the areas where restaurants/bars exist. In addition, 11948 challans have been issued for improper parking in the entire area of Rajouri Garden Circle. Similarly, 4105 vehicles have been towed away with the help of crane in the area. Also 308 challan for honking horns and 130 challans for pressure horns have been
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	Item No. 10 September 27, 2018 dv	issued during the period from 01.01.2016 to 30.11.2016. 16. Delhi Pollution Control Committee (DPCC), in its affidavit, has stated that restaurants are operating without Consent to Establish and Consent to Operate. A list of restaurants operating in the area has been filed with the inspection report. 17. The Department of Environment Management Services (EMS) West Zone (SDMC) have filed a 'comprehensive' status report in relation to waste generation near restaurants in Vishal Enclave. It is stated that respondents were required to comply with the Municipal Solid Waste Management Rules, 2016 and order of the Tribunal dated 02.12.2016 in <i>Sukhdev Vihar Residents Welfare Association and Ors. Vs. State of NCT of Delhi & Ors.</i>¹ 18. The ACP (Sub-division), Rajouri Garden, West Delhi, has filed an inspection report stating that in most of the restaurants, no activity was taking place at the time of inspection. A survey report of bars has been filed. 19. The above resume of the facts and proceedings clearly shows that there is hardly any compliance of law and the problem of noise pollution by commercial establishments as well as by individuals continues unabated. Action taken is just a tip of the iceberg. 20. As already noted, the matter was considered by the Hon'ble Supreme court in <i>Re: Noise Pollution</i>, Supra, in the
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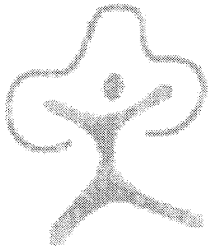
¹ Original Application No. 640/2018

	Item No. 10 September 27, 2018 dv	context of an incident of rape of a minor girl whose cries were ignored on account of loud noise. It was held that peaceful living, without being disturbed by noise, was part of fundamental issue under Article 21. Noise was a health hazard. Reference was made to statutory provisions for control of noise in India and other countries as well as the case law on the point. 21. The Hon'ble Supreme Court issued directions for controlling the menace of noise pollution by the crackers, loud speakers, vehicular noise and also general directions. There is also a direction for creations awareness. 22. One of the significant directions in terms of the order dated 27th September, 2011, which has been quoted in the said judgment is as follows: <i>"119. (1) xxxxx (2) xxxxx (3) xxxxx (4) The State Education Resource Centres in all the States and the Union Territories as well as the management/principals of schools in all the States and Union Territories shall take appropriate steps to educate students about the ill-effects of air and noise pollution and apprise them of Directions"</i> 23. It was noted that the above directions have been by and large complied with. The Hon'be Supreme Court noticed that the rules framed were not comprehensive, the authorities responsible for implementing were not fully identified and there was lack of equipment for proper measurement of noise levels. Final directions issued included creation of awareness towards the hazardous effects of noise pollution by incorporating the subject in the school syllabus and also imparting training to Police and Civil Administration. Direction was also issued for
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	Item No. 10 September 27, 2018 dv	coercive measures for confiscation of equipment used for creating the noise beyond permissible limits. 24. Having regard to the material on record in the present case, it appears to be necessary to repeat the directions in the Judgment of the Hon'ble Supreme Court and to evolve a mechanism for compliance of the said directions. 25. Some of the directions are quoted herein below for ready reckoner: <i>“(ii) Loudspeakers</i> <i>175. 1. The noise level at the boundary of the public place, where loudspeaker or public address system or any other noise source is being used shall not exceed 10 dB(A) above the ambient noise standards for the area or 75 dB(A) whichever is lower.</i> <i>2. No one shall beat a drum or tom-tom or blow a trumpet or beat or sound any instrument or use any sound amplifier at night (between 10.00 p.m. and 6 a.m.) except in public emergencies.</i> <i>3. The peripheral noise level of privately-owned sound system shall not exceed by more than 5 dB(A) than the ambient air-quality standard specified for the area in which it is used, at the boundary of the private place.</i> <i>(iii) Vehicular Noise</i> <i>176. No horn should be allowed to be used at night (between 10 p.m. and 6 a.m.) in residential area except in exceptional circumstances.</i> <i>(iv) Awareness</i> <i>177. 1. xxxxx</i> <i>2. The State must play an active role in this process. Resident Welfare Associations, service clubs and societies engaged in preventing noise pollution as a part of their projects need to be encouraged and actively involved by the local administration.</i> <i>3. Special public awareness campaigns in anticipation of festivals, events and ceremonial occasions whereat firecrackers are likely to be</i>
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	Item No. 10 September 27, 2018 dv	<i>used, need to be carried out."</i> 26. We accordingly direct as follows: i. The Chief Secretary, Delhi, Commissioner of Police, Delhi and Delhi Pollution Control Committee will be responsible for enforcement of directions of the Hon'ble Supreme Court referred to above as well as to comply with the Statutory Rules and Regulations and instructions on the subject. They have to take effective steps in the matter; ii. The Commissioner of Police may nominate a DCP exclusively for dealing with the issue of noise pollution. Other police authorities of Delhi must co-operate and report to the DCP (Noise Pollution) with regard to the issue of noise pollution; iii. Chief Secretary of Delhi may nominate one SDM exclusively for dealing with the issue of noise pollution in same manner as (ii) above; iv. The above DCP and the SDM must have a joint meeting to review the situation atleast once in a week; v. They may have their exclusive website for receiving and disseminating information to the public. A dedicated helpline 24 x 7 may be made operative which may be jointly monitored by the DCP and the SDM. vi. The Member Secretary of Delhi Legal Services Authority may nominate two senior citizens
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	Item No. 10 September 27, 2018 dv	and suitable number of paralegal volunteers representing the concerned areas who may attend atleast one meeting with the DCP and the SDM in a fortnight. vii. A complete public redressal mechanism system should be devised for receiving complaints by SMS, telephones or e-mails. viii. The Joint Committee of DCP and SDM will co-ordinate with the statutory authorities so as to ensure that any equipment used is seized, any license of the person using such equipment may be cancelled, prosecution initiated, fines recovered. ix. The statutory authorities may suitably enhance the amount of fine so as to act as deterrent. x. The amount of fine collected may be credited to a separate fund and utilised in the process of creating awareness, including by way of awareness programmes in educational institutions by instituting prizes and awards for the participants. This mechanism will be in addition to and not in substitution of the existing statutory mechanism under the rules. 27. A quarterly report of the action taken may be sent to this Tribunal. First such report may be sent by 15.01.2019 by e-mail at filing.ngt@gmail.com.
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	Item No. 10 September 27, 2018 dv	28. A copy of this order be sent to the Chief Secretary, Delhi, the Police Commissioner, Delhi, the Member Secretary, Delhi Legal Services Authority and the Member Secretary, DPCC by e-mail for compliance. 29. Needless to say that order of National Green Tribunal is binding as a decree of Court and non-compliance is actionable by way of punitive action including prosecution, in terms of the National Green Tribunal Act, 2010. 30. To consider the report which may be received in pursuance of the above directions, the matter may be listed on 8th February, 2019. The application stands disposed of.  , CP (Adarsh Kumar Goel) ,JM (S.P. Wangdi) ,EM (Dr. Nagin Nanda) 27.09.2018
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No-18/NCT Sect/P10

02/07/2021



DELHI POLLUTION CONTROL COMMITTEE

5th Floor I.S.B.T. Building Kashmiri Gate Delhi-6

visit us at : <http://dpcccomms.nic.in>

Annexure - 'C'
OFFICE OF DCP/PCR, DELHI

Diary No. 16572

Dated: 11/7/2021

Marked: NCT

ACP/HQ/PCR

Id. Clerk/PCR

F.No DPCC/(12)(1)(316)/Air Lab/ 2021/ 82

Dated:- 25/06/2021

Subject:- Direction to designated authorities in compliance of the directions issued by Central Pollution Control Board under Section 5 of the Environment (Protection) Act, 1986- Regarding Implementation of Compensation Regime for violation of Noise Rules, 2000.

WHEREAS, under Section 17 (1) (a) of the Air (Prevention and Control of Pollution) Act 1981, one of the functions of the State Pollution Control Boards (SPCBs)/Pollution Control Committees (PCCs) is to plan a comprehensive program for the prevention, control or abatement of air pollution in the State and to secure the execution thereof; and

WHEREAS, under section 2(a) of Air (Prevention and Control of Pollution) Act, 1981 noise is defined as air pollutant; and

WHEREAS, as per the Noise Pollution (Regulation and Control) Rules, 2000 notified under Environment (Protection) Act, 1986, the following responsibilities are vested with SPCB and PCCs (DPCC in case of Delhi):

1. *The respective State Pollution Control Boards (SPCBs) or Pollution Control Committees (PCCs) in consultation with the Central Pollution Control Board shall collect, compile and publish technical and statistical data relating to noise pollution and measures devised for its effective prevention, control, and abatement.*

Whereas, all Deputy Commissioners (Revenue), all Sub Divisional Magistrates, Asstt. Commissioners of Police control room, All Sub Divisional Police Officers including Railways & Airport, Chairman and Member Secretary, DPCC and Assistant Commissioners of Police (Traffic) are notified as "authority" under Rule (2) of the Noise Rules, by the Govt. of NCT of Delhi vide notification no. F:23(107I)/Env./2001/676 dated 10.12.2001 and F:12 (1)/N.P./ Env./2005/33 dated 05.04.2008.

WHEREAS, as per rule 4(2) of the Noise Pollution (Regulation and Control) Rules, 2000, the designated authorities are responsible for the enforcement of noise pollution control measures and the due compliance of the ambient air quality standards in respect of noise; and

WHEREAS, section 15(1) of The Environment (Protection) Act, 1986 states that "Whoever fails to comply with or contravenes any of the provisions of this Act, or the rules made or orders or directions issued thereunder, shall, in respect of each such failure or contravention, be punishable with imprisonment for a term which may extend to five years or with fine which may extend to one lakh rupees, or with both, and in case the failure or contravention continues, with additional fine which may extend to five thousand rupees for every day during which such failure or contravention continues after the conviction for the first such failure or contravention."

WHEREAS, in the matter of O.A NO 519/2016, 496/2018, 196/2018, and 197/2018 dated 01/08/2019, Hon'ble National Green Tribunal directed to CPCB:

"The CPCB needs to devise the scale of compensation to be adopted as a measure to enforce the Rule 4(2) of the Noise Pollution (Regulation and Control) Rules, 2000 by the concerned authority on the basis of 'Polluter Pays' principle. Though violation of the rules like the Noise Rules here is a criminal offence punishable under Section 15 of the Environment (Protection) Act, 1986 with imprisonment upto five years and fine up to Rs. 1 lakh, since the prosecution of a non-cognizable offence may have its own limitations, civil liability on Polluter Pays' principle can be invoked by the enforcement regulatory authority as per the guidelines which may be laid down by the CPCB. The scale of compensation may have reference to the extent and severity of default and whether the default is a repeated offence."

WHEREAS, in compliance to the directions of Hon'ble NGT, CPCB prepared scale of compensation for "Violation of the Noise Pollution (Regulation and Control) Rules, 2000" and submitted a report to Hon'ble NGT on 14/11/2019; and

WHEREAS, Hon'ble NGT vide order dated 15.11.2019 directed to CPCB as:

- a. Compensation for bursting of crackers at serial no 4 needs to be suitably revised and the needs to be different for different class of defaulters and frequencies of default.*
- b. CPCB may lay down stringent compensation for tampering with sound limiters to ensures that same is not restored.*

WHEREAS, in compliance to directions of Hon'ble NGT, CPCB prepared a revised report on the scale of compensation for Violation of the Noise Pollution (Regulation and Control) Rules, 2000 and submitted a report to Hon'ble NGT on 12/06/2020 (Enlistment of violation of noise rules and their respective scale of compensation is enclosed); and

WHEREAS, in the aforesaid matters Hon'ble NGT vide its order dated 11/08/2020, further directed to CPCB:

"While we find that certain steps have been taken by the Delhi Police, Delhi Government, DPCC, and the CPCB, further steps are required to ensure that the noise pollution norms are enforced at the ground level for protection of public health and the environment in the light of orders already passed. We are of the view that the compensation scale laid down by the CPCB may be enforced throughout India. The CPCB may issue appropriate statutory orders for the purpose of being complied with in all the States/UTs."

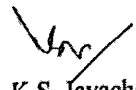
WHEREAS, CPCB vide directions dated 27.04.2021 directed to DPCC for issuance of direction and implementation of the compensation scale for violation of the Noise Rules to be implemented by designated authorities as notified by Government of NCT of Delhi from time to time.

NOW, THEREFORE, in view of the above-stated facts and to ensure compliance of the existing rules and prevent further violation of noise levels with respect to prescribed standards/ limit and in pursuance of the directions issued by Central Pollution Control Board under Section 5 of the Environment (Protection) Act, 1986, DPCC hereby direct the designated Authorities in NCT of Delhi to implement Scale of compensation for Violation of the Noise Pollution (Regulation and Control) Rules, 2000 as accepted by Hon'ble national Green Tribunal (copy enclosed as Annexure-1).

The compensation amount so collected shall be deposited in Delhi Pollution Control Committee having account no. 10166747672, IFSC Code SBIN0005715 in State Bank of India, ISBT. Kashmere Gate, Delhi.



Monthly action taken reports of inspections conducted, compensation imposed and compensation collected shall be submitted by the authorized officers to Delhi Pollution Control Committee, without fail (format of reporting is enclosed as Annexure-2).

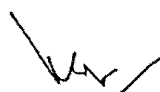

(Dr. K.S. Jayachandran)
Member Secretary

To.

1. All Deputy Commissioners, office of Divisional Commissioner, Govt. of N.C.T of Delhi.
2. Asstt. Commissioners of Police control room.
3. Assistant Commissioners of Police (Traffic)
4. All Sub Divisional Magistrates, office of Divisional Commissioner, Govt. of N.C.T of Delhi.
5. All Sub Divisional Police Officers including Railways & Airport.
6. All Branch in-charges of CMCs, EIA DPCC.

Copy for information and necessary action:

1. The Divisional Commissioner, 5 Sham Nath Marg, Delhi-1 10054.
2. Commissioner of Delhi Police. Jai Singh Road, near Bangla Sahib Gurdwara, New Delhi-1.
3. Nodal Officer, Noise Pollution, cum DCP/PCR, Delhi Police
4. Director (Env), GNCTD of Delhi
5. In-charge IT Section, DPCC for uploading on the website of DPCC.
6. Accounts Officer, DPCC to maintain separate heads on the issue.


(Dr. K.S. Jayachandran)
Member Secretary

Sr. No.	Violation of Noise Rules	Compensation (in Rupees) to be paid by defaulter	Action to be taken by designated authority
1.	USE OF LOUD SPEAKERS/PUBLIC ADDRESS SYSTEM ¹ (Clause 5(1)-5(2), 6(i,ii,iii and v) ¹⁻⁵	₹ 10,000	Seizure
2.	VIOLATION WRT GENERATOR SETS NORMS (standards attached as Annexure - IV to VI)		
d)	DG sets more than 1000 KVA	₹ 1,00,000/-	Sealing of DG sets
e)	DG sets 62.5 to 1000 KVA	₹ 25,000/-	
f)	DG sets upto 62.5 KVA	₹ 10,000/-	
3.	VIOLATION OF USE OF SOUND EMITTING CONSTRUCTION EQUIPMENT	₹ 50,000/-	Seizure/Sealing of equipment
4.	Bursting of Firecrackers beyond the prescribed time limit prescribed (Hon'ble Supreme Court and Clause 5A (2) and 6 (iv) ⁷⁻⁸		
4(1)	Violation by Individual/Household	Residential / Commercial/Mixed Zone Silence Zone 1,000	Silence Zone 3,000
4(2)	Violation during Possession a. Public Rallies b. Barat during marriage Religious event	10,000	20,000
			Fine to be paid by Organizer

4(3)	First Violation within a fixed Premises: a. Function organized by RWA, b. Marriage Function c. Public Function d. Institution function e. Banquet Hall f. Open ground functions	20,000	Fine to be paid by Organizer and Owner of the place.
4(4)	Second Violation within a fixed Premises: a. Function organized by RWA, b. Marriage Function c. Public Function d. Institution function e. Banquet Hall - Open ground function	40,000	
4(5)	More than Two Violation within a fixed Premises: a. Function organized by RWA, b. Marriage Function c. Public Function d. Institution function e. Banquet Hall - Open ground function	1,00,000 and action under EP Act.	Sealing of Premises

Format for compensation of Noise Pollution (Regulation and Control) Rules, 2000

S.No.	Violation of Noise Rules	Compensation in Rs. paid by defaulter		Action taken by designated authority
		Nos. of violation	Amount in Rs.	
1.	Use of loud speakers / public address system			
2.	Violation WRT Generator Sets Norms			
a	D.G.Sets more than 1000 KVA			
b	D.G.Sets 62.5 to 1000 KVA			
c	D.G.Sets up to 62.5 KVA			
3.	Violation of use of sound emitting construction equipment			
4.	Bursting of Firecrackers beyond the prescribed time limit prescribed.			
4(1)	Violation by Individual/ household	Residential/commercial/ mixed zone Silence zone		
4(2)	Violation during possession a. Public Rallies b. Barat during marriage c. Religious event			
4(3)	First Violation within a fixed permission: a. Function organized by RWA. b. Marriage Function c. Public Function. d. Institution Function. e. Banquet hall f. Open Ground Functions			
4(4)	Second Violation within a fixed permission a. Function organized by RWA. b. Marriage Function c. Public Function. d. Institution Function. e. Banquet hall f. Open Ground Functions			
4(5)	More than two Violation within a fixed permission a. Function organized by RWA. b. Marriage Function c. Public Function. d. Institution Function. e. Banquet hall f. Open Ground Functions			

GOVERNMENT OF NATIONAL CAPITAL TERRITORY OF DELHI
(DEPARTMENT OF ENVIRONMENT)

6th Level, C-Wing, Delhi Secretariat, I.P. Estate, New Delhi-110002.

Annexure - 'D'

F.12 (1)/N.P/Env/2005/---33---

Dated the 3rd April, 2008.

NOTIFICATION

F.12 (1)/N.P/Env/2005/---33---. - In pursuance of provisions of clause (c) read with clause (h) of rule 2 of the Noise Pollution (Regulation and Control) Rules, 2000, made under the provisions of the Environment (Protection) Act, 1986 (29 of 1986) and the rules framed there under, under the notification of the Government of India, Ministry of Environment and Forests, vide notification number S.O. 123 (E) dated the 14th February, 2000 as amended, and in partial modification of earlier Notification No.F.23(1071)/Env/2001/676 dated the 10th May, 2001, the Lieutenant Governor of the National Capital Territory of Delhi is pleased to further designate the following officers of the Government of the National Capital Territory of Delhi as the " authority " for the maintenance of the ambient air quality standards in respect of noise under the Environment (Protection) Act, 1986 in the National Capital Territory of Delhi:-

(1) Assistant Commissioners of Police (Traffic).

By order and in the name of
Lieutenant Governor of the
National Capital Territory of Delhi.


(S.R. Sharma)

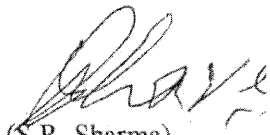
Deputy Secretary (Environment)

F.12 (1)/N.P/Env/2005/---33---

Dated the 3rd April, 2008.

Copy forwarded for information and necessary action to:

1. The Deputy Secretary (GAD), Govt of NCT of Delhi (in duplicate) with the request to have this notification published in Delhi Gazette (Extraordinary) of today and send 10 copies of the Gazette to this Department for necessary action and record.
2. Secretary, Ministry of Environment & Forest, Govt. of India.
3. Joint Secretary (UT), Ministry of Home Affairs, Govt. of India.
4. Secretary to Lt. Governor, Govt. of NCT of Delhi
5. Principal Secretary to Chief Minister, Govt. of NCT of Delhi
6. Secretaries to all Ministers, Govt. of NCT of Delhi
7. PS to Speaker, Delhi Vidhan Sabha, Delhi
8. All Principal Secretaries/ HODs, Govt. of NCT of Delhi
9. Commissioner, MCD, Delhi
10. Chairman, NDMC, Delhi
11. Chief Executive Officer, Delhi Cantonment Board
12. Divisional Commissioner, Govt. of NCT of Delhi
13. The Secretary (Law, Justice and L. A.), Govt. of NCT of Delhi, New Delhi.
14. Principal Secretary, Department of Health & Family Welfare, Govt. of NCT of Delhi
15. Secretary, Directorate of Education, Govt. of NCT of Delhi
16. Director, Directorate of Higher Education, Govt. of NCT of Delhi
17. All Deputy Commissioners, office of Divisional Commissioner, Govt. of NCT Delhi.
18. Commissioner of Police, Delhi
19. Chairman Delhi Pollution Control Committee.
20. Guard File.


(S.R. Sharma)

Deputy Secretary (Environment)

118
Page 2 of 4
c/32
117
32/6
(TO BE PUBLISHED IN PART IV OF DELHI GAZETTE - EXTRAORDINARY)
GOVERNMENT OF NATIONAL CAPITAL TERRITORY OF DELHI
(DEPARTMENT OF ENVIRONMENT)
6TH LEVEL, C-WING, DELHI SECRETARIAT, I.P. ESTATE, NEW DELHI - 110002.

No. F.23(1071)/Env./2001/ 676

NOTIFICATION

Dated the 10th Dec., 2001

No. F.23(1071)/Env./2001/ In pursuance of the provisions of Clause (c) read with Clause (h) of rule 2 of the Noise Pollution (Regulation and Control) Rules, 2000, as amended the Lt. Governor of the National Capital Territory of Delhi is pleased to designate the following officers of the Government of National Capital Territory of Delhi as the "authority" for the maintenance of the ambient air quality standards in respect of noise under the Environment (Protection) Act, 1986 in the National Capital Territory of Delhi.

- (i) All Deputy Commissioners, office of Divisional Commissioner, Govt. of N.C.T. of Delhi.
- (ii) All Sub Divisional Magistrates, office of Divisional Commissioner, Govt. of N.C.T. of Delhi.
- (iii) Asstt. Commissioners of Police control room.
- (iv) All Sub Divisional Police Officers including Railways & Airports.
- (v) Chairman and Member Secretary of Delhi Pollution Control Committee, Delhi.

By Order and in the name of the
Lt. Governor of the National Capital
Territory of Delhi,

Pankaj Kumar
(PANKAJ KUMAR)
DEPUTY SECRETARY (ENVIRONMENT)
GOVT. OF NCT OF DELHI

No. F.23(1071)/Env./2001/ 676

Dated the 10th Dec., 2001

Copy forwarded for information and necessary action to :-

1. The Deputy Secretary (GAD), Govt. of NCT of Delhi (in duplicate with Hindi version) with the request to have this notification published in the Delhi Gazette (Extraordinary) of today and send 10 copies of the Gazette to this Department for necessary action and record.
2. Secretary, Ministry of Environment and Forest, Govt. of India.
3. Joint Secretary (UT), Ministry of Home Affairs, Govt. of India.
4. Secretary to L.G., Govt. of NCT of Delhi.
5. Principal Secretary to C.M., Govt. of NCT of Delhi.
6. Secretaries to all Ministers, Govt. of NCT of Delhi.
7. PS to Speaker, Delhi Vidhan Sabha, Delhi.
8. All Principal Secretaries/HODs, Govt. of NCT of Delhi.
9. Commissioner MCD, Delhi.
10. Chairman, NDMC, Delhi.
11. Chief Executive Officer, Delhi Cantonment Board.
12. The Secretary (Law, Justice & L.A.), Govt. of NCT of Delhi, New Delhi.
13. All Deputy Commissioners, office of Divisional Commissioner, Govt. of NCT of Delhi.
14. Commissioner of Police, Delhi.
15. Chairman Delhi Pollution Control Committee.
16. Guard file.

Pankaj Kumar
(PANKAJ KUMAR)
DEPUTY SECRETARY (ENVIRONMENT)
GOVT. OF NCT OF DELHI

(TO BE PUBLISHED IN PART IV OF DELHI GAZETTE-EXTRAORDINARY)
GOVERNMENT OF NATIONAL CAPITAL TERRITORY OF DELHI (DEPARTMENT
OF ENVIRONMENT)

6TH LEVEL, C-WING, DELHI SECRETARIAT, I.P. ESTATE, NEW DELHI-110002.

No.F-23(107)/Env./2001/ 676 NOTIFICATION Dated the 10th Dec 2001

No. 423(1071)/Env./2001/ In pursuance of the provisions of Clause (c) read with (h) of rule 2 of the Noise Pollution(Regulation and Control) Rules 2000 as amended the Lt. Governor of the National Capital Territory of Delhi is pleased to designate the following officers of the Government of National Capital Territory of the as the "authority" for the maintenance of the ambient air quality standards in respect of those under the Environment (protection) Act, 1936 in the National Capital Territory of Delhi.

- I. All Deputy Commissioner, office of Divisional Commissioner, Govt. Of NCT of Delhi.
- II. All Sub Divisional magistrate, office of Divisional Commissioner, Govt. Of NCT of Delhi.
- III. Asstt. Commissioner of Police Control Room.
- IV. All Sub Divisional Police Officers including Railways & Airports.
- V. Chairman and Member Secretary of Delhi Pollution Control Committee, Delhi.

By Order and in the name of the
Lt Governor of the National
Capital Territory of Delhi

(PANKAJ KUMAR)
DEPUTY SECRETARY (ENVIRONMENT)
GOVT OF NCT OF DELHI.

No. 723(1071) .Env./2001/676/ dated 10th Dec. 2001

Action Plan

In pursuance of the directions and proceedings held in the Hon'ble NGT in OA No.519/2016 – Hardeep Singh Vs. SDMC & Ors., OA No.400/2017, Westend Green Farms Society, Rajokri Vs UOI & Others and OA No.196/18, 197/18, 496/18, Akhand Bharat Morcha Vs. UOI & Ors (copies of OAs enclosed), and the directions passed by the Oversight Committee headed by Justice (Retd) S. P. Garg thereupon, the Apex Committee constituted by the Commissioner of Police, Delhi vide No.10949-65/AC(IV)/C&T/PHQ dated 03rd April, 2019 has proposed the following action plan to be undertaken by various Districts/Units of Delhi Police:-

S. N.	Action to be taken	Relevant Act/ Standing Order	U/S	Unit concerned
1.	Action on DJ Sets	Environment Protection Act 1986	5/15	Local Police
		D.P. Act	28/112 & 113	
		BNS	223, 270, 292 & 293	
		BNSS	152	
		Noise Pollution Regulation Control Rules, 2000/2009.		
		Standing Order No. Tech. & PI/02/2025		
2.	Action on loudspeakers	Environment Protection Act 1986	5/15	Local Police
		D.P. Act	28/112 & 113	
		BNS	223, 270, 292 & 293	
		BNSS	152	
		Noise Pollution Regulation Control Rules, 2000/2009.		
		Standing Order No. Tech. & PI/02/2025		
3.	Action on Crackers	Environment Protection Act 1986	5/15	Local Police
		D.P. Act	28/112 & 113	
		BNS	223, 270, 292 & 293	
		BNSS	152	
		Noise Pollution Regulation Control Rules, 2009.		
		Standing Order No. Tech. & PI/02/2025		

		Hon'ble Supreme Court of India WP(c) No. 728 of 2015, 891 of 2016, 895 of 2016, 899 of 2016 and 213 of 2017 in Arjun Gopal and Ors. Vs. UOI and Ors.		
4.	Notices issued to farm houses, licensed entities and other with respect to noise and environment pollution, prohibited timings and restricted zones.	Environment Protection Act 1986	5/15	Local Police
		D.P. Act	28/112 & 113	
		BNS	223, 270, 292 & 293	
		BNSS	152	
		Noise Pollution Regulation Control Rules, 2000/2009.		
		Standing Order No. L&O/82/2022		
5.	Action is to be taken against organizers of functions without having adequate parking facility thereby causing obstruction.	Motor Vehicle Act –	122/127	Local & Traffic Police
		Standing Order No. L&O/82/2022		
6.	Action to be taken against organizers, causing noise and environment pollution during social functions in hotels, motels, farm houses and others.	Noise Pollution Regulation Control Rules, 2000/2009.		Local Police
		Environment Protection Act 1986	5/15	
		Delhi Police Act	28/112 & 113	
		Standing Order No. Tech. & PI/02/2025		
7.	Inspection of farm houses, hotels, motels, Banquet halls, restaurants and prosecution with respect to violation pertaining to noise pollution, provision of licensed condition, traffic rules, vehicle parking, swimming pool, ground water extraction and others.	Environment Protection Act 1986	5/15	Local & traffic Police
		D.P. Act	28/112 & 113	
		BNS	223, 270, 292 & 293	
		BNSS	152	
		Motor Vehicle Act & Rules	122/177 & 96(1)/177 DMVR	
		Noise Pollution Regulation Control Rules, 2000/2009.		
		Standing Order No. L&O/82/2022		

8.	Action is to be taken against vehicles causing noise pollution and using multi toned horns, power/pressure/ musical horns as well as honking in silence zones.	Motor Vehicle Act.	21/177 RRR & 96(1)/177 DMVR	Traffic Police
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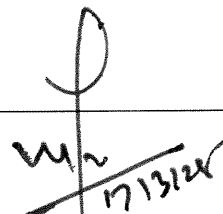
A D D E N D U M
STANDING ORDER NO. TECH & PI/02/2025
MENACE OF NOISE POLLUTION

This is in continuation to Standing Order No. **Tech & PI/02/2025**, titled **“Menace of Noise Pollution”**, issued Vide No. 1801-1950/Record Branch/PHQ, dated 05/03/2025.

The following para of the above SO may be read as amended hereunder:-

Para No.	Existing provision	Amended provisions
5(II) Loud speakers	II. Loudspeakers: (Reference Section 5 of Noise Pollution (Regulation and Control) Rules, 2000) 1. The noise level at the boundary of the public place, where loudspeaker or a public address system or any other noise source is being used shall not exceed 10 dB (A). 2. No one shall beat a drum or tom-tom or blow a trumpet or beat or sound any instrument or use any sound amplifier at night (between 10.00 pm and 6.00 am) except in public emergencies. 3. The peripheral noise level of privately owned sound shall not exceed by more than 5 dB(A) than the ambient air quality standard specified for the area in which it	Restrictions on the use of loud speakers/public address system and sound producing instruments: 1. A loud speaker or a public address system shall not be used except after obtaining written permission from the Authority, which has been defined in the Noise Pollution (Regulation and Control) Rules, 2000, Para (2) (definition), Sub Para (C). 2. A loud speaker or a public address system or any sound producing instrument or a musical instrument or a sound amplifier shall not be used at night time except in closed premises for communication within, like auditoria, conference rooms, community halls, banquet halls or during a public emergency. 3. The noise level at the boundary of the public place, where loudspeaker or public address system or any other noise source is being used shall not exceed 10 dB (A) above the ambient

	is used, at the boundary of the private place. 4. According to Regulation No. 3 of the 'Union Territory of Delhi Loud-speakers (Licensing and Controlling) Regulations, 1980, no person shall use, or permit loudspeakers in any public place or within a distance of 200 meters from any public place or in any place of public entertainment except under and in accordance with the conditions of licence granted by the Commissioner of Police, Delhi or by any officer authorized by him on his behalf. No permission for playing of loudspeakers between 10.00 PM to 6.00 AM should be issued by the districts under any circumstances.	noise standards for the area or 75 dB (A) whichever is lower; 4. The peripheral noise level of a privately owned sound system or a sound producing instrument shall not, at the boundary of the private place, exceed by more than 5 dB (A) the ambient noise standards specified for the area in which it is used.
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(SANJAY ARORA)
COMMISSIONER OF POLICE
DELHI

No. 2251-2400

/Record Br./PHQ dated, Delhi 17.03.2025

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioner of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ (IV)/PHQ with the direction to upload the Addendum in Standing Order on Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
9. PS/Reader to C.P., Delhi
10. HAR/PHQ.
11. Librarian/PHQ.